
ARTS Standard Proposal: Protecting Open Source from a Regulatory Moat

1 message

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Dear EFF AI Policy Team,

As a two-person independent game studio with over two decades of industry experience—including roles at Electronic Arts, Netflix Games, SAP, Y-Combinator Research and the Office of the CTO at Microsoft—we are reaching out to share a developed, open-source technical labeling standard designed to directly counter the current corporate narrative and provide real transparency for consumers and small-scale creators.

We have watched with growing concern as Big AI executives weaponize unscientific, legally unfalsifiable sci-fi terminology like "superintelligence" and "AGI" to lobby for sweeping federal and state prohibitions, most notably Vermont Senator Bernie Sanders' *Ban Artificial Superintelligence Act (BASA)*. By criminalizing standard algorithmic math, imposing strict liabilities modeled after nuclear non-proliferation, and demanding centralized government licensing, these proposals create a post-9/11 "anti-terror" style legal blank check. This architecture will be trivial for multi-billion-dollar tech cartels to navigate, but will effectively outlaw independent, local, and open-source AI development.

To protect independent software innovation and preserve the foundational EFF principle that code is free speech, our studio, Droidknot LLC, has crafted the **AI Rating Transparency System (ARTS)** as a regulatory alternative to bans that play into the catastrophizing narrative of Big AI to build their competitive moat.

ARTS is a **process-comprehensive, holistic labeling system** that rejects speculative compute-capacity thresholds. Instead, it introduces an empirical framework that scores the entire lifecycle of an AI product—from dataset origin through local execution, and maps platform boundary conditions. Rather than forcing a blunt, monopolistic "advanced AI pause," ARTS isolates actual, localized architectural risks via a development and deployment rubric, 4 Symbolic Safety Modifiers (System Access, Network Connectivity, Chat Interface, and Sensing and Telemetry), and an OSHA-style **System Information Sheet (SIS)**.

Crucially, our standard provides unrivaled turnkey regulatory harmonization out-of-the-box, satisfying eight distinct compliance checkpoints across active global laws, including the **EU AI Act (Article 50)**, **California SB 942**, the **New York Synthetic Performer Law** and **KAIBA**. It demonstrates that transparency can be achieved via a cascading informational standard without gatekeeping the software ecosystem.

We have formally petitioned the following to adopt this framework and have recommended concrete developer exemptions:

- **California Assembly Committee on Privacy and Consumer Protection**
- **California Select Committee on Growing Impact of Artificial Intelligence in California**
- **California Senate Committee on Business, Professions and Economic Development**
- **California Senate Committee on Judiciary**
- **New York Assembly Committee on Science and Technology**
- **New York Assembly Standing Committee on Consumer Affairs and Protection**
- **New York Senate Standing Committee on Internet and Technology**
- **Republic of Korea Science, ICT, Broadcasting, and Communications Committee**
- **EU Committee on Internal Market and Consumer Protection (IMCO)**
- **EU Committee on Civil Liberties, Justice and Home Affairs (LIBE)**

To maintain total community ownership, the ARTS standard is entirely public domain, released under a **Creative Commons Zero (CC0) Universal License**, and hosted openly on GitHub. I have attached a print-ready PDF of our whitepaper explaining ARTS, and a color-coded matrix displaying exact, human-verified label assessments across 22 distinct commercial tech products (including tools like Ollama and local, sandboxed Small Language Models, alongside enterprise and hardware products).

We would deeply appreciate the opportunity to brief your technical and legal staff on how the ARTS framework can be deployed to dismantle corporate regulatory capture and protect the open-source community from sweeping state overreach. The digital gateway and repository can be audited live at droidknot.com/ARTS.

Thank you for your tireless advocacy for digital liberties, and I look forward to your feedback.

Submitted Respectfully,

Steve Sedlmayr

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